

25STCV08708 25STCV08708

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25STCV08708 Hearing Date: July 8, 2026 Dept: 508

Superior Court of California

County of Los Angeles

Department 508

KIMBERLY GILES,

Plaintiff,

vs.

HOUSING AUTHORITY,

Defendant.

Case No.:

25STCV08708

Hearing Date:

July 8, 2026

Hearing Time:

10:00 a.m.

[TENTATIVE] ORDER RE:

DEFENDANT HOUSING

AUTHORITY FOR THE CITY OF LOS ANGELES' MOTION FOR RELIEF FROM ENTRY OF
DEFAULT

Background

On

March 26, 2025, Plaintiff Kimberly Giles ("Giles") filed this action against Defendant Housing Authority, asserting that her "house was on fire," so she "was put in a hotel," but all her "thing[s] in [her] unit w[ere] destroyed, by water and mold a day or two after the fire." (Compl., 2:3-9.) Giles also alleges that "housing Authority change[d] my lock to my unit[] and my storage garage without notif[y]ing me," and "left all my things in the unit with all the windows close[d]." (Compl., 2:10-14.) Giles' seeks damages for pain and suffering, emotional distress, breach of contract, and personal property.

The

Court Clerk entered Giles' request for entry
of default on October 8, 2025.

Defendant

Housing Authority for the City of Los Angeles ("HACLA") now moves for an order setting aside the default entered against it on October 8, 2025. Giles did not file an opposition.

Legal

Standard

Code

of Civil Procedure section 473, subdivision (b) provides in pertinent part as follows:

"The court may, upon any terms as may

be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment,

dismissal, order, or proceeding was taken. ... Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to the attorney's mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against the attorney's client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against the attorney's client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect. "

"[T]he moving party has the burden of showing that the neglect leading to default was excusable." (Jackson v. Bank of Am. (1983) 141 Cal.App.3d 55, 58.) "[B]ecause the law strongly favors trial and disposition on the merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief from default." (Elston v. City of Turlock (1985) 38 Cal.3d 227, 233 [superseded by statute on other grounds as stated in Tackett v. City of Huntington Beach (1994) 22 Cal.App.4th 60, 64].) Where the party in default moves promptly to seek relief, and no prejudice to the opposing party will result from setting aside the default, "very slight evidence will be required to justify a court in setting aside the default." (Ibid.) "While section 473 authorizes a court to relieve a party from default suffered through inadvertence, surprise, excusable neglect or mistake, 'these words are not meaningless, and the party requesting such relief must affirmatively show that the situation is one which clearly falls within such category.'" (Kendall v. Barker (1988) 197 Cal.App.3d 619, 623 (emphasis in original).)

Discussion

HACLA moves under Code of Civil Procedure section 473, subdivision (b), to set "aside the default entered against it on October 8, 2025 on the grounds that the default was a result of the mistake, inadvertence, surprise or neglect of defendant's counsel, pursuant to the attached affidavit of fault (mandatory grounds)." (Notice of Mot., 2:9-11.)

HACLA provides the declaration of attorney Timothy J. Watson, who attests that "[o]n April 15, 2025, HACLA notified Lillian Harwell, who was a partner at Lewis Brisbois Bisgaard & Smith LLP, regarding this lawsuit and confirmed she would

continue representing HACLA because Ms. Harwell and [sic] handled a previous matter filed by Plaintiff and was actively handling another related case arising from the same fire at 4765 Clarence St., Los Angeles, CA 90046. Harwell confirmed she would be handling this matter on behalf of HACLA on multiple occasions including April 15, 2025 and again on May 5, 2025. However, Harwell failed to attend to this matter or notify any other attorney at LBBS of its existence. Therefore, LBBS was not able to ensure that Harwell or another attorney at LBBS complied with the obligations or attended all hearings in this matter.” (Watson Decl., ¶ 3.) Watson explains that thereafter, Harwell departed from LBBS and “LBBS learned that Harwell made multiple failures in this case which led to this Court’s entry of default against defendant on October 8, 2025.” (Id., ¶ 4.)

Watson attests

that “[b]ased on my review of our file, these failures by Ms. Harwell include the following: (a) failing to file a responsive pleading on behalf of The Housing Authority for the City of Los Angeles; (b) failing to inform any other attorney or staff of LBBS of this matter; (c) failing to appear at any hearing; and (d) failing to file a motion for relief from entry of default.” (Watson Decl., ¶ 5.) Watson further declares that “[a]fter learning of Ms. Harwell’s deficiencies in this case, including that the court entered default against our client, my office requested that Plaintiff stipulate to setting aside the default entered against our client. Plaintiff did not respond to voicemails or emails.” (Id., ¶ 7.)

HACLA’s motion

contends that “[t]he totality of circumstances discussed by this Court which led to default is thus attributable to attorney neglect, not intentional misconduct by the client. Accordingly, relief from default is mandatory. Although the court clerk entered Plaintiff’s request for entry of default on October 8, 2025, the Court has not ordered a judgment against Defendant as of the date of this filing. Pursuant to Code of Civil Procedure section 473, subdivision (b), a copy of the proposed responsive pleading is attached as Exhibit B.” (Mot., 8:10-15.)

The Court finds

that the declaration provided by HACLA demonstrates that the entry of default against it resulted from former defense counsel’s mistake, inadvertence or neglect in this action, and is not attributable to any misconduct by HACLA. Additionally, HACLA has filed this motion before default judgment has been entered. Accordingly,

pursuant to attorney fault under Code of Civil Procedure section 473, subdivision (b), relief is mandatory. HACLA also complied with the provisions of the statute by attaching its answer to Watson's declaration.

Conclusion

Based on the foregoing, HACLA's motion to set aside entry of default is GRANTED. The entry of default from October 8, 2025 is vacated. HACLA is ordered to file and serve its answer to the complaint within three days of this Order.

HACLA
is ordered to provide notice of this Order.

DATED: July 8, 2026

Hon. Teresa A. Beaudet

Judge, Los Angeles Superior
Court